Om Prakash vs State (Nct Of Delhi) on 1 September, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

$~3
* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2012/2025
OM PRAKASH
Through: Ms
Ad

versus

STATE (NCT OF DELHI)
Through: Mr
St
No

CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
ORDER

% 01.09.2025

1. The present application under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 20231 (erstwhile Section 439 of the Code of Criminal Procedure, 19732) seeks regular bail in proceedings arising from FIR No. 5/2024 registered under Section 420 of the Indian Penal Code, 18603 at P.S. Cyber Police Station, North East. A chargesheet has also been filed against the Applicant under Sections 420, 120B and 34 IPC.

2. The case of the prosecution, in brief, is as follows:

> 2.1. A complaint was received in P.S. Cyber Police Station, North East through NCRP. After preliminary inquiry, FIR No. 05/24 under Section 420 IPC was registered. The Complainant, Rajesh Pal, alleged that on 18th "BNSS"
>
> "Cr.P.C."

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58 October, 2023, he received a WhatsApp message from a mobile number, offering a part-time job. He was promised INR 50 per video like and initially received this amount. Thereafter, he was added to a

Telegram group where he was assigned further video review tasks. On the pretext of task completion and assured returns with profit, the Complainant was induced to transfer a total of INR. 15,20,000/- from his bank accounts into different accounts provided by them.

2.2. The cheated amount was traced to multiple bank accounts, one of which was in the name of co-accused Subham Mishra, wherein a credit of INR 49,000 was reflected. Investigation further revealed that this account was, in fact, being operated by the present Applicant, Om Prakash. This conclusion is supported by the fact that the account in question was accessed on 18th October, 2023 through a private Wi-Fi connection registered in the name of the Applicant's wife, Seema.

2.3. On 19th October 2023, an amount of approximately INR 1.98 crore was credited to the same account. Guest records from a hotel confirm the presence of the Applicant along with Subham Mishra on that day, further corroborating that the Applicant was actively involved in operating the account at the time of the transaction.

2.4. Disclosure statement of co-accused Subham Mishra corroborates the role of the Applicant in operating the account and handling the cheated amount.

2.5. Further investigation revealed that the Applicant is involved in multiple cyber fraud cases registered in other states as well.

3. Counsel for the Applicant urges the following grounds in support of "IPC"

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58 the Application:

> 3.1. The Applicant has been falsely implicated in the present case, and there is no material to show that he was the recipient or beneficiary of the cheated amount.
>
> 3.2. The investigation is complete, chargesheet has been filed and therefore, the continued incarceration of the Applicant would serve no purpose and would amount to punitive detention. 3.3. The evidence relied upon by the prosecution is primarily documentary in nature and the Applicant's further custody is not required for the purposes of investigation.
>
> 3.4. The evidence relied upon by the prosecution is weak, circumstantial and does not directly connect the Applicant with the commission of the alleged offence.
>
> 3.5. The trial is only at the stage of framing of charges and the prosecution has cited 19 witnesses, indicating that the trial is likely to take considerable time.

3.6. Co-accused Subham Mishra, in whose account the cheated amount was credited, has already been released on bail and therefore, the Applicant is entitled to parity.

3.7. Considering the overall facts of the case, and having regard to the settled principle of law that "bail is the rule, jail is the exception", the Applicant is entitled to be released on bail.

4. Mr. Ajay Vikram Singh, APP for State, on the other hand, opposes the bail application on the following grounds:

4.1. The Applicant is involved in multiple cyber fraud cases registered in other states as well, namely FIR No. 02/2024 under Sections 420, 201, 120B This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58 IPC, P.S. Cyber, Jhajjar, Haryana; FIR No. 168/2024 under Sections 318(4), 61(2), 238 of Bharatiya Nyaya Sanhita, 2023, P.S. Cyber NIT, Faridabad, Haryana; and FIR No. 54/2023 under Sections 420, 467, 468, 471, 120B, 34 IPC, P.S. Cyber, Rohtak, Haryana. This reflects that the Applicant is a habitual offender engaged in organised cybercrime across the country. Therefore, there is a strong likelihood that, if released on bail, the Applicant may commit similar offences of the same nature.

4.2. The Applicant did not cooperate during investigation and sought to evade the process of law, compelling the Investigating Agency to secure his presence through the issuance of Non-Bailable Warrants. 4.3. Some of the co-accused persons involved in the conspiracy have not yet been traced.

4.4. The case of co-accused Subham Mishra, who has been granted bail, is clearly distinguishable. Subham Mishra's role was confined to permitting the use of his bank account for receipt of part of the cheated amount. In contrast, the investigation reveals that the account was actually operated and controlled by the present Applicant.

5. The Court has considered the rival contentions advanced on behalf of the parties and has perused the material placed on record. It is not in dispute that the investigation is complete and the chargesheet has been filed. The prosecution's case rests predominantly on documentary and electronic material already collected, and no further recovery is shown to be pending at the instance of the Applicant. Thus, custody of the Applicant is not necessary for any investigation purposes.

6. The Applicant has contended that he is neither the direct beneficiary nor the recipient of the alleged cheated amount. Whether the Applicant This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58 derived direct pecuniary benefit, or acted as a conduit, are matters that necessitate evidentiary scrutiny during trial. These questions cannot be conclusively determined at the stage of bail.

7. Insofar as the other cases cited by the prosecution are concerned, it is pointed out that the Applicant has already been granted bail in FIR No. 02/2024 registered at P.S. Cyber, Jhajjar, Haryana and FIR No. 168/2024 registered at P.S. Cyber, NIT, Faridabad. As regards FIR No. 54/2023 registered at P.S. Cyber, Rohtak, the Applicant has yet to move for bail therein. The pendency of multiple FIRs, without any conviction, cannot by itself be a determinative ground to curtail liberty. The law is well settled that pendency of other cases is only one factor in the bail; nonetheless every case must be assessed on its own facts, the nature of evidence, and the stage of trial.

8. As per the nominal roll, the Applicant has been in custody for more than 8 months. The case is still at the stage of consideration on charge, and the prosecution has cited as many as nineteen witnesses. Realistically, the trial is bound to take a considerable period to conclude. In these circumstances, the continued detention of the Applicant would not advance the cause of justice. Rather, it would operate as pre-trial punishment

9. The contention of the prosecution that the Applicant is a habitual offender and may indulge in similar activities if released on bail has also been duly considered. While such apprehensions cannot be brushed aside lightly, it is equally well settled that the possibility of misuse of liberty cannot, by itself, be a ground to deny bail indefinitely. The Court is required to balance the apprehension of repetition with the Applicant's right to liberty under Article 21 of the Constitution. In the considered opinion of this Court, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58 these concerns can be adequately mitigated by imposing stringent conditions.

10. It must also be emphasised, as consistently held by the Supreme Court in a catena of judgments, that the object of bail is neither punitive nor preventive. Pre-trial detention is not intended to inflict punishment in advance of conviction. The underlying purpose of bail is to secure the presence of the accused at trial and to ensure that the judicial process is not obstructed.4

11. Therefore, having regard to the totality of circumstances, including the completion of investigation, the period of incarceration already undergone by the Applicant, the maximum sentence prescribed, the bail granted to co-accused, and that the trial is likely to take a considerable amount of time, this Court is of the view that the Applicant is entitled to be released on bail.

12. The Applicant is, therefore, directed to be released on bail on furnishing a personal bond for a sum of INR 50,000/- with two sureties of the like amount, subject to the satisfaction of the Trial Court/Duty MM, on the following conditions:

> a. The Applicant shall cooperate in any further investigation as and when directed by the concerned IO;

b. The Applicant shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case or tamper with the evidence of the case, in any manner whatsoever; c. The Applicant shall under no circumstance leave the country without See also: Sanjay Chandra v. CBI, (2012) 1 SCC 40; Satender Kumar Antil v. Central Bureau of Investigation, (2022) 10 SCC 51.

This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58 the permission of the Trial Court;

d. The Applicant shall appear before the Trial Court as and when directed;

e. The Applicant shall provide the address where he would be residing after his release and shall not change the address without informing the concerned IO/ SHO;

f. The Applicant shall, upon his release, give his mobile number to the concerned IO/SHO and shall keep his mobile phone switched on at all times. g. The Applicant shall report to the concerned P.S. on the first Monday of every three months.

h. It is clarified that the Applicant shall not be released on bail till the time he has secured bail in other cases, as required as per law.

13. With the above directions, the present application is allowed and disposed of accordingly.

SANJEEV NARULA, J SEPTEMBER 1, 2025/ab This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 03/09/2025 at 22:06:58